

The word "Cabinet" is mentioned in the Constitution of India in Article 352(3) which says "The President shall not issue a Proclamation unless the Union Cabinet communicates to him in writing that such a Proclamation may be issued. It is noteworthy that the word 'Cabinet' has been mentioned two times in this article.

10. Who is the highest Civil Services Officers of the Central Government?

- (a) The Attorney General of India
- (b) The Cabinet Secretary
- (c) The Home Secretary
- (d) The Finance Secretary
- (e) None of the above / More than one of the above

63rd B.P.S.C. (Pre) 2017

Ans. (b)

The Council of Ministers seldom meets as a body. It is the Cabinet, an inner body within the Council, which shapes the policies of the Government. Cabinet Ministers hold the charge of key portfolios. There is no bar on the appointment of a person from outside the legislature as a minister, but he cannot continue for more than six months unless he secures a seat in either House of the Parliament in the meantime. A minister, who is a member of one House has the right to speak and to take part in the proceedings of the other House, though he has no right to vote in the house of which he is not a member. The Union Cabinet Secretariat is not operated under the direction of Ministry of Parliamentary Affairs. The Union Cabinet Secretariat is under the supervision of Prime Minister's Office. Its administrative Chief is Cabinet Secretary, who is the Ex-officio Chairman of Civil Services Board. The cabinet secretary is the highest civil services officer of the central government. Hence both the statements are false.

11. Which of the following Constitutional Amendment Acts restricted the size of the Council of Ministers to 15 percent of the total members of the Lok Sabha?

- (a) 95th Constitutional Amendment Act, 2009
- (b) 93rd Constitutional Amendment Act, 2005
- (c) 91st Constitutional Amendment Act, 2003
- (d) 90th Constitutional Amendment Act, 2002
- (e) None of the above / More than one of the above

66th B.P.S.C. (Pre) (Re- Exam), 2020

Ans. (c)

91st Constitutional Amendment Act, 2003 says that the total number of Ministers, including Prime Minister in the Council of Ministers, shall not exceed fifteen percent of the total number of members of the Lok Sabha. This provision was added in **Article 75(1A)** through the 91st Constitutional Amendment Act, 2003.

The Attorney-General/Advocate General and the C.A.G.

1. Who advises the Government of India on legal matters?

- (a) Attorney General
- (b) Chief Justice of the Supreme Court
- (c) Chairman, Law Commission
- (d) None of them

49th B.P.S.C. (Pre) 2000

Ans. (a)

According to Article 76 of the Indian Constitution, it shall be the duty of the Attorney General to advise to the Government of India upon legal matters, and to perform such other duties of legal character. The Attorney General is the first law officer of the Government of India. The President shall appoint a person who is qualified to be appointed as a Judge of the Supreme Court to be Attorney General of India.

2. Which officer of the Government of India has the right to take part in the proceedings of Parliament of India even though he is not a member?

- (a) Vice-President
- (b) Attorney-General of India
- (c) Comptroller and Auditor-General
- (d) Election Commissioner
- (e) None of the above/More than one of the above

60th to 62nd B.P.S.C. (Pre) 2016

Ans. (b)

The Attorney-General Can participate in the proceedings of any house of Parliament as a non-member. There is also a Vice-president in the given option and he is also not a member of Parliament, so here the Vice-President can also be the answer. However, if the motion to remove the Vice-President from the post of chairman of Rajya Sabha is under consideration in the house, then the Vice-President does not remain the ex-officio chairman of Rajya Sabha at that time. During this time he can be a part of the House and in this context he can speak in the House. If, it is a matter of Participation in the proceedings of both Houses of the Parliament.

3. As a Non-Member who can participate in the proceedings of either House of Parliament.

- (a) Vice-President
- (b) Chief Justice
- (c) Attorney General
- (d) Chief Election Commissioner

48th to 52nd B.P.S.C. (Pre) 2008

Ans. (a & c)

See the explanation of the above question.